

DATE OF COUNCIL MEETING: August 12, 2013

TYPE OF DOCUMENT: (X_ORDINANCE) (__RESOLUTION) (__PRELIMINARY PLAT/
PRELIM PUD ZONE CHANGE) (__LEASE/CONTRACT) (CHANGE ORDER/CONTRACT
MODIFICATION) (__CONSIDER BID) (APPLICATIONS/LICENSES/PERMITS)
(APPOINTMENTS) (__ANNOUNCEMENTS/REPORTS/MOTIONS) (__OTHER)

SPONSORS: (ORDINANCE OR RESOLUTION) Sean Allen

EXACT WORDING FOR AGENDA An Ordinance pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from A1 Agricultural and Rural Residential (County) to MUR Mixed-Use Residential Emphasis for Snyder Plaza, Cheyenne, Wyoming (located east of and adjacent to Snyder Avenue, north of W. Allison Road).

(1% Sales Tax Funding/Years) N/A

(Other Funding _____) (Grant _____)

CONTACT PERSON: Brett Walker PHONE: 637-6305 DEPT: Bldg/Development

OTHER CITY DEPARTMENT AFFECTED: Engineering Tech Branch

OTHER GOV'T AGENCIES AFFECTED: N/A

FINANCIAL IMPACT PROPOSED OR CONDITIONS WHICH AFFECT CITY: N/A

CONTRACT TERM: N/A STARTING DATE: N/A

	YES	NO	N/A
Is funding budgeted?	☐	☐	☒
Were Bids called for?	☐	☐	☒
Affected parties notified of Council procedure and dates?	☒	☐	☐
Has bond, insurance or other security been arranged?	☐	☐	☒
Have legal descriptions been checked?	☒	☐	☐

Agenda Item approved / reviewed by :

Risk Mgr (☐) City Attorney (☐) Dept. Head (☒)

General Comments: The City of Cheyenne Planning Commission recommended approval of the above described Zone Change at their meeting on August 5, 2013, by a vote of 3-0. The recommendation was made pursuant to criteria outlined in Section 2.2.1.d of the Cheyenne UDC. See the attached Staff Report for more definitive information.

Submitted by: Brandon Cammarata Title: Director Date: August 7, 2013

UPON PASSAGE OF THE AGENDA ITEM, COPIES SHOULD BE SENT TO:

Engineering Tech Branch City Clerk's Office

Development Office

STAFF REPORT

Snyder Plaza

Summation

Zone District Map Amendment Process

CASE NUMBER(s): UDC-13-00266

FILE CODE: SNYD-PFD

PREPARED BY: Brett Walker

MEETING August 5, 2013 – Planning Commission

DATES: August 12, 2013 – City Council

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Complete Application
- Zone Change Exhibit Map

RECOMMENDATION: The Planning and Development Office recommends approval of the zone change request from **A-1 Agricultural and Rural Residential** to **MUR Mixed-Use with Residential Emphasis**, pursuant to criteria outlined in Section 2.2.1.d of the Cheyenne UDC.

STAFF REPORT UPDATE (8/6/2013): At its regular meeting Monday, August 5, 2013, the City of Cheyenne Planning Commission recommended approval of the above described Zone Change by a unanimous vote of 3 to 0. The recommendation was made pursuant to the criteria outlined in Section 2.2.1.d of the UDC.

STAFF REPORT

Snyder Plaza

Zone District Map Amendment Process

CASE NUMBER(s): UDC-13-00266

FILE CODE: SNYD-PFD

PREPARED BY: Brett Walker

MEETING DATES: August 5, 2013 – Planning Commission
August 12, 2013 – City Council

OWNER: AYA Homes, LLC 770-364-4177
7009 Cordova Drive
Cheyenne, WY 82009

AGENT: Brad Emmons 307-637-6017
A.V.I., P.C.
1103 Old Town Lane, Ste. 101
Cheyenne, Wyoming 82009

PROJECT: Snyder Plaza (replat in process)

WORK DESCRIPTIONS: 2 mixed-use buildings and 9 four-plexes

LOCATION:

1. Legal Description: a replat of a portion of Blocks 80 and 81, formerly known as Interior Heights Addition, now vacated, being a portion of the NE¼ of Section 7, T.13N., R.66W., 6th P.M., Cheyenne, Wyoming
2. Location: East of and adjacent to Snyder Avenue, north of W. Allison Road
3. Address: Vacant

SIZE: Total Area: 2.9 Acres

CURRENT ZONING: A-1 Agricultural and Rural Residential District

PROPOSED ZONING: MUR Mixed-Use with Residential Emphasis District

EXISTING LAND USE: Vacant

PROPOSED LAND USE: Mixed-Use

SURROUNDING LAND USES:

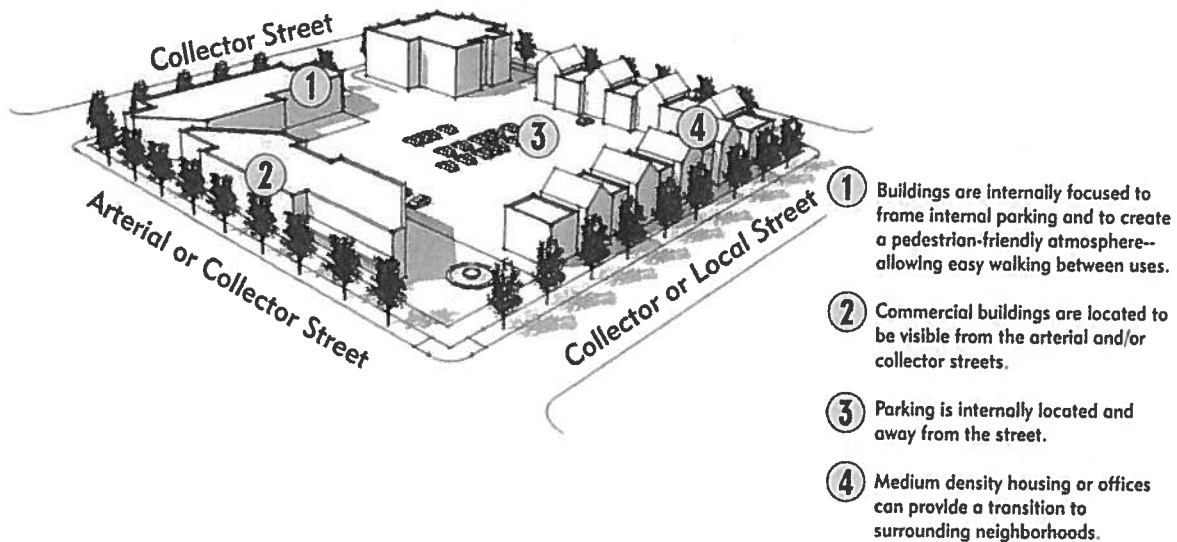
SURROUNDING	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Greenway/WAPA	A-1	City
South	Apartments	HR-2	City
East	Single-Family	MR-2	City
West	Johnson Jr. High	P	City

EXECUTIVE SUMMARY: This Zone Change request has been submitted in order to facilitate a mixed-use development. As A1 is a County Zone District, a Zone Change is required to develop this property in any form.

ZONE CHANGE DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed Zone Change Request, the Staff, Planning Commission and City Council shall use the following criteria:

PLANCHEYENNE. *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

PlanCheyenne contemplates Urban Residential for this area. The Urban Residential category allows for a broader variety of residential types, including single-family residences, duplexes, patio homes, townhomes, condominiums and apartment. Supporting and complementary uses, including open space and recreation, schools, places of worship, and other public or civic uses are encouraged. Senior housing facilities are also appropriate. Neighborhood commercial may be appropriate in newly developing areas if it complies with the criteria for Neighborhood Business Centers, as illustrated below (ShapeCheyenne, Page 3-4):



The proposal is in concordance with many of the Policies highlighted in the Comprehensive Plan. Specifically, as follows:

Policy 1.3.b: Variety of Housing in Neighborhoods.

The community will encourage the incorporation of a mixture of housing types with varied price ranges and densities to attempt to meet the needs of all segments of the community.

Policy 1.4.a: Infill Opportunities

The community will support infill in existing neighborhoods, but ensure that infill is compatible with neighborhoods and districts through design standards (e.g., to address scale, height, and character of infill as it relates to existing development).

Policy 2.3.a: Mix of Housing Types

The community will strongly encourage using a variety of housing types and models, sizes, and price ranges in new neighborhoods to provide expanded housing options. Incorporating a mix of housing types at both the neighborhood scale and the block scale helps create varied and interesting streetscapes and a diverse community.

Policy 2.3.b: Higher Density Housing

Higher density and senior housing should typically be located near activity centers and transportation corridors (arterial and collector streets) to provide for convenient access, and should include common areas such as courtyards, playgrounds, or open space.

Policy 4.3.b: Neighborhood Design to Support Walking and Bicycling

New neighborhoods should contain a mix of compatible uses so that residents have recreation, employment and shopping opportunities within walking or bicycling distance of their homes.

Policy 6.2.b: Connected Community-Wide Trail System

The community will connect a larger community wide primary trail system to connect major destinations and provide opportunities to recreation routes (loops), as identified through the Master Plan. Developers should provide local trails to connect neighborhoods to the regional Greenway.

Policy 7.2.e: Maximized Infrastructure

Investments. The community will contain urban development within the Urban Service Boundary to maximize our efficient and economic use of infrastructure investments (both public and private).

SURROUNDING AREA. *The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.*

A 120-unit, 13-building multi-family apartment complex immediately to the south is zoned HR-2, and covers about 6.5 acres for a density of about 18.5 dwelling units per acre. This project proposes 9 4-plexes, and 16 “flats” over commercial in 2 mixed-use buildings, for a total of 52 dwelling units (about 17.9 dwelling units per acre).

Though the residential densities are similar, the proposed commercial component certainly adds to the intensity of the use. However, such use is contemplated in PlanCheyenne, as evidenced by the Policies outlined above. This will provide an opportunity for neighborhood-serving uses unlikely to attract high intensity commerce due to low area traffic.

ZONING, BASIC STANDARDS & USES. *The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district;*

This Zone Change enables development to occur on the lot. If the site was to remain A1, the options for development would be extremely limited. In fact, the UDC does not recognize the A1 designation, and the previous development code considered it “for use in the County only” (17.16.010).

STREETS & OPEN SPACE. *The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning;*

No new Right-of-Way is being proposed, and the Transportation Network is well established in this area. The Open Space requirement is exempted per 4.4.2.b.1, UDC, due to the adjacent Greenway existing to the north, as well as Johnson Junior High Schools open fields to the west.

ZONING, INTENT, APPLICABILITY & DESIGN OBJECTIVES. *The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.*

The MUR District is intended for a mix of Residential, Retail, Service, Employment, and Civic uses where the predominant use will be Residential, with moderate or higher densities and a range of housing types. Non-residential uses should be limited to those that primarily support residential uses within the district. The district regulations are designed to allow a variety of housing types, and establish the necessary amenities to support higher-density urban neighborhoods. The MUR District is applicable to areas where more urban, higher-density and walkable residential neighborhoods are desired and are appropriate with a high level of pedestrian and civic amenities, specifically areas designated Mixed-use Residential Emphasis in the Comprehensive Plan.

This application proposes multi-family four-plexes, and “lofts” above pedestrian-scale retail and service businesses. This proposal could contribute to service provision for students from the nearby schools, as well as those citizens who are using the Greenway, either for transportation or recreation.

ZONING, FUTURE DEVELOPMENT. *The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.*

Should the proposal not materialize, and the MUR zoning is in place, this lot will still have many options. It could become an entirely residential project, or scale down the proposed commercial component, depending on market demands. Furthermore, the design guidelines in a pedestrian district like MUR would assure reasonable development compatible with the surrounding area.

REVIEWING AGENCY AND REVIEWERS COMMENTS: None

AGENCIES AND REVIEWERS RESPONDING WITHOUT COMMENTS: City Engineer, Engineering Tech/GIS

AGENCIES AND REVIEWERS NOT RESPONDING: Urban Planning, City Attorney

OTHER COMMENTS RECEIVED: None

Encl: Zone Change Exhibit Map
Aerial Map

cc: Owner
Agent/Applicant
File

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE PURSUANT TO SECTION 2.2.1, ZONING MAP AMENDMENTS, SECTION 5.1.2, ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3, OFFICIAL ZONING MAP, OF THE CHEYENNE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM A1 AGRICULTURAL AND RURAL RESIDENTIAL(COUNTY) TO MUR MIXED-USE RESIDENTIAL EMPHASIS FOR SNYDER PLAZA, CHEYENNE, WYOMING (LOCATED EAST OF AND ADJACENT TO SNYDER AVENUE, NORTH OF W. ALLISON ROAD)."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner of the property described herein, has applied for a zoning map amendment ("zone change") for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on August 5, 2013, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Snyder Plaza, Cheyenne, Wyoming, is hereby changed to MUR Mixed-Use Residential Emphasis.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication and upon the official filing of the affiliated *Snyder Plaza* final plat map with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING: _____

SECOND READING: _____

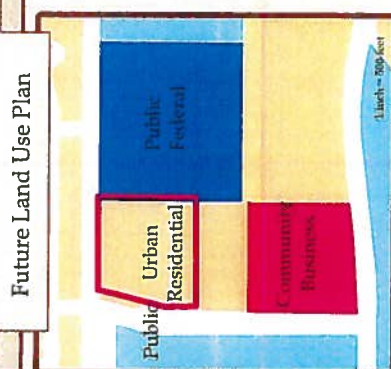
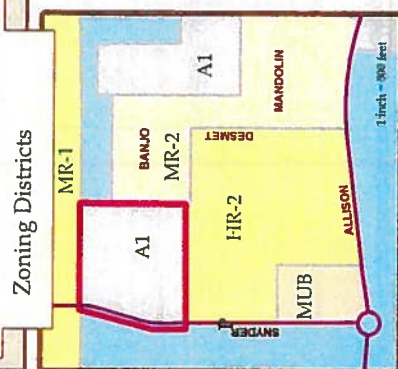
THIRD AND FINAL READING: _____

RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

publish date: _____



SNYDER PLAZA

A replat of a portion of Blocks 80 and 81, formerly known as Interior Heights Addition, now vacated, being a portion of the NE $\frac{1}{4}$ of Section 7, T.13N., R.66W., 6th P.M., Cheyenne, Wyoming

Preliminary Plat:
UDC-13-00265

Zone Change:
UDC-13-00266

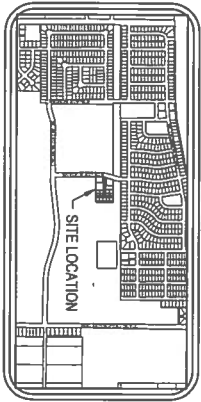
A Preliminary Plat submitted in conjunction with a Zone Change Request from A-1 Agriculture and Rural Residential to MUR Mixed-Use with Res. Emphasis

This Zone Change enables development to occur on the lot. If the site was to remain A1, the options for development would be extremely limited. In fact, the UDC does not recognize the A1 designation, and the previous development code considered it "for use in the County only". The A1 designation is a remnant that has been whittled away as development has occurred in the area over the last 20 years. This includes South High School and Lexington Apartments to the south, and the rest of the Harmony Point Subdivision to the East.

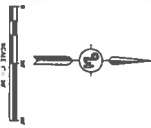
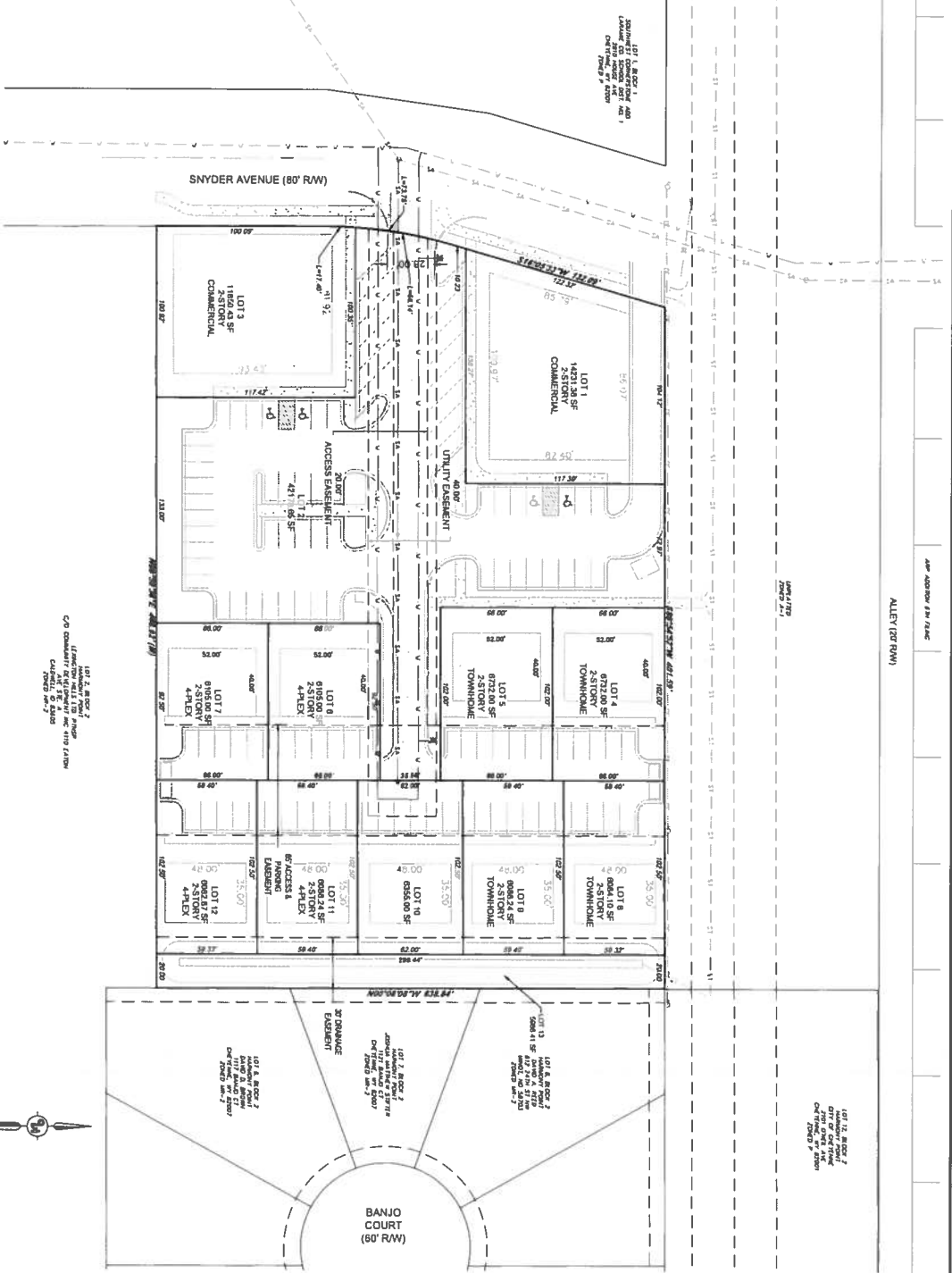


This map is made possible through the Cheyenne and Laramie County Comprehensive GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS makes its sovereign and governmental immunity in following areas to its best ability.





NEIGHBOR MAP



- COMPARISON TABLE**
1. TOTAL SITE AREA = 2.998 ACRES
 2. BUILDING FOOTPRINT = 0.794 ACRES
 3. PARKING PROVISIONS = 84 REGULAR SPACES - 4 HANDICAP
 4. LANDSCAPED AREA = 0.883 ACRES
 5. SEE TRAFFIC STUDY FOR TRIPS PER DAY
 6. CURRENT ZONING = A-1
 7. PROPOSED ZONING = MUR

ZONE CHANGE OF SNYDER PLAZA

A REPLAY OF A PORTION OF THE NE 1/4 OF SECTION 7, TOWNSHIP 13 NORTH, RANGE 66 NORTH, MERIDIAN 10 WEST, A PORTION OF INTERIOR PLOTS, BLOCKS 80 AND 81 AND

BEING SITUATED IN THE NE 1/4 OF SECTION 7, TOWNSHIP 13 NORTH, RANGE 66 NORTH, MERIDIAN 10 WEST, A PORTION OF INTERIOR PLOTS, BLOCKS 80 AND 81, CHEYENNE, LARAMIE COUNTY, WYOMING

PROJECT: SNYDER PLAZA	PREPARED FOR: AYA HOMES LLC 7009 CORDOVA DRIVE CHEYENNE, WY 82009	NO.	REVISION	DATE
DRAWING TITLE: ZONE CHANGE MAP		DRAWING NO.: 3524		